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September 5, 2026

VIA CERTIFIED MAIL, RETURN RECEIPT REQUESTED

Hon. Karen Bailey Turner, J.C.C.
Monroe County Court
Hall of Justice
99 Exchange Blvd., 5th Floor, Room 545
Rochester, NY 14614

Re: People v. Bernecky — SORA Risk-Level Classification Hearing,
September 11, 2026, 11:30 a.m.
Index No.: None assigned by the Clerk's Office as of this date

Dear Judge Bailey Turner:

I am the respondent in the above matter, appearing without counsel. I am sending this letter and the enclosed documents directly to Your Honor's chambers, by certified mail, because I have been unable to get them filed any other way, and the hearing is now only days away.

I attempted to file these documents with the Clerk's Office in person, and was told the Court does not accept filings from unrepresented parties, and that I should either retain or be assigned an attorney, or bring the documents to the hearing itself. I called the Clerk's Office again to ask that they be accepted, and was told the same thing. The Clerk's Office also told me that no index or indictment number has been assigned to this matter, and that this results from my underlying conviction having occurred outside Monroe County. I am noting that here so the absence of a number on these documents is not mistaken for an omission on my part. I called the Monroe County Public Defender's Office to seek assigned counsel. Whether an attorney has been assigned to this case on paper, I do not know — but no attorney from that office has taken my call, reviewed these documents, or discussed this case with me in any way. I am sending an identical set of these documents to the Clerk's Office today, by the same method, so that both chambers and the Clerk's Office have them in advance of the hearing regardless of how each office is able to process them.

I am enclosing six documents:

1. Memorandum of Law in Support of Respondent's Application for a Downward Departure

2. Certification of Jeffrey Bernecky, with Exhibits A through E (Exhibits at Item 2b)
3. Motion to Adjourn
4. Application for Assignment of Counsel
5. Motion for Forensic Expert Funding Pursuant to County Law § 722-c
6. Demand for Disclosure and, if Necessary, Subpoena Duces Tecum

I am asking the Court to accept these documents into the record, or to direct the Clerk's Office to do so, in advance of the September 11, 2026 hearing. I intend to raise this filing history, and to renew each of these requests, on the record at the hearing itself if they have not been resolved before then.

A copy of this letter and its enclosures is being sent to the Monroe County District Attorney's Office by the same method and on the same date.

Respectfully,

Jeffrey Bernecky
Respondent, Pro Se

Enclosures: as listed above
cc: Monroe County District Attorney's Office
cc: Monroe County Court Clerk's Office (duplicate set enclosed under separate cover, same date)